

NATURE'S PERSPECTIVE LANDSCAPING, INC.

2000 Greenleaf Street , Evanston, IL 60202

847-475-7917 Fax # 847-475-7975

www.naturesperspective.com

Proposal # 22893

Sales Rep. Miriam Arroyo

Proposal/Contract

12/5/2025



Proposal submitted to:

Chris VanAvermaete
1013 Colfax St
Evanston, IL 60201

Work to be performed at:

1013 Colfax St
Evanston, IL 60201

NATURE'S PERSPECTIVE LANDSCAPING, INC., the "Contractor", hereby proposes to furnish all material and perform all the labor necessary for the completion of the following described work:

HARDSCAPE INSTALLATION

Tree Installation Note

-Tree species and pricing addressed in proposal #22572. See proposal for more details and information.

-Trees to be installed per plans. Placement to be confirmed with client prior to installation. Notify Project Manager and Designer of any in field discrepancies.

Qty	Unit	Items	Price Each	Total
0.00	hr	Labor - Landscaping (Mh)	\$0.00	\$0.00

Tree Installation Note Total: \$0.00

Permits

Qty	Unit	Items	Price Each	Total
1.00	ea	Permit Coordination -Permit coordination for hardscape and tree removal. -Includes all necessary drawings, application submission, inspection coordination, and city/village fees. -Note: Your project will not be scheduled until NPL receives permit approval from the city/village.	\$750.00	\$750.00

Permits Total: \$750.00

Site Preparation

NOTE: Labor to remove concrete will increase by 20% if metal reinforcement is discovered.

-Remove existing hardscape (bluestone, brick, and concrete step stones) between gate and deck

-Powerwash and set aside existing bluestone to create path from gate to new terrace and for border around new upper terrace.

-Re-grade and prep area as needed to level out upper and lower terrace areas

Qty	Unit	Items	Price Each	Total
12.00	hr	Labor - Construction (Mh)	\$128.00	\$1,536.00
3.00	cy	Debris Disposal - Hardscape -Estimated amount, will bill for additional.	\$125.00	\$375.00
0.50	cy	Debris Disposal - Landscape -Estimated amount, will bill for additional.	\$90.00	\$45.00
1.00	cy	Topsoil, Pulverized -Note: Soil may need to settle for up to 1 week. **Estimated amount, will bill for actual.	\$250.00	\$250.00
1.00	Mh	Labor to Powerwash (Mh) Estimated amount - Will bill for additional	\$128.00	\$128.00
1.00	ea	Equipment Fee	\$300.00	\$300.00

Site Preparation Total: \$2,634.00

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Retaining Wall Installation

- See plans for retaining wall layout and height. Install wall as shown in plan.
- Install 8' length retaining wall under paving as indicated in plan using Unilock Estate Wall Blocks.

Qty	Unit	Items	Price Each	Total
32.00	lf	Dry Laid/Modular Wall Base Installed	\$32.87	\$1,051.84
43.00	ff	Modular Walls Installed	\$26.42	\$1,136.25
43.00	ff	Walls - Estate Wall Sierra	\$36.48	\$1,568.82
23.00	lf	Coping Installed (Straight)	\$46.20	\$1,062.51
23.00	lf	Coping - Estate Wall coping Sierra	\$12.05	\$277.23
23.00	lf	Coping - Unilock Universal Coping, Buff 19" x 2.75" x 14"	\$25.38	\$583.73
3.00	ea	18 in. D x 120 in. L Root barrier rolls	\$188.16	\$564.48

Retaining Wall Installation Total: \$6,244.86

Backyard Brick Terraces

Description of scope of work:

- Install monolithic steps as shown in plan
- Install (330) square feet of paving as per design. See plans for grading, layout and dimensions.
- Paving to be installed with a permeable base
- Cut existing bluestone for 1' border around upper terrace brick
- Install root barrier along retaining wall.-Material: Clay Brick Pavers
- Color: Medium Ironspot #77
- Pattern: Herringbone
- Edge Detail: Soldier course
- Includes excavation, 6" compacted gravel base and 1" chipped stone bedding layer.

Qty	Unit	Items	Price Each	Total
4.00	hr	Labor - Construction (Mh)	\$128.00	\$512.00
330.00	sf	Pavers + Base Installed	\$29.40	\$9,700.41
230.00	sf	Pavers - Clay, Endicott - Medium, Ironspot #77	\$14.19	\$3,263.96
330.00	sf	Sand - Polymeric, Alliance G2, Beige	\$0.82	\$271.34
30.00	lf	Perma Edging Installed	\$7.89	\$236.77
100.00	lf	Cut Edge	\$8.96	\$896.00
5.00	ea	Steps - Bluestone, 18" wide x 36" long x 5 -7" thick, Snapped	\$623.53	\$3,117.64
1.00	ea	Steps - Bluestone, 18" wide x 48" long x 5-7" thick, Snapped	\$767.36	\$767.36
7.00	ea	Boulder - Granite (19"-24")	\$195.00	\$1,365.00

Backyard Brick Terraces Total: \$20,130.48

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Paver Driveway

Description of scope of work:

-Material: Brussels Block Half-stone

-Color: Limestone

-Pattern: Herringbone

-Edge Detail: Sailor Course

-Re-grade driveway to have positive drainage towards alley.

-Install retaining wall along fence using Brussels Dimensional. Top of wall to be level with rest of driveway according to grading plan.

Qty	Unit	Items	Price Each	Total
160.00	sf	Pavers + Base Installed	\$29.92	\$4,786.72
50.00	lf	Cut Edge	\$8.96	\$448.02
160.00	sf	Pavers - Concrete, Brussels Block - Half Stone, Limestone	\$10.81	\$1,729.89
150.00	sf	Sand - Polymeric, Alliance G2, Beige	\$0.82	\$123.33
25.00	lf	Dry Laid/Modular Wall Base Installed	\$32.91	\$822.87
25.00	ff	Modular Walls Installed	\$26.42	\$660.42
25.00	ff	Walls - Brussels Dimensional, Limestone	\$28.45	\$711.13

Paver Driveway Total: \$9,282.38

Edge Restoration, Sod Install & Ornamental Grass

-Re-store all disturbed area along hardscape edges.

-Install 95 SF of sod to restore area south of new permeable driveway

-Install (7) Dwarf fountain grass as shown in plan

Qty	Unit	Items	Price Each	Total
0.25	cy	Shredded Hardwood Bark	\$250.00	\$62.50
		-Estimated amount, will bill for additional.		
		-If weeding or debris removal is needed before application additional charges will apply.		
0.25	cy	Compost, Blended	\$250.00	\$62.50
		-Estimated amount, will bill for additional.		
		-If weeding or debris removal is needed before application additional charges will apply.		
7.00	1 gal	Grass, Dwarf Fountain, Hameln	\$22.47	\$157.29
		<i>Note: Special order item - carries no warranty.</i>		
95.00	sf	Sod Installation	\$3.50	\$332.50
		-Includes preparation, debris disposal, labor and sod.		
		**Estimated amount, will bill for actual.		
52.00	sf	Sod Restoration for Construction Projects	\$3.50	\$182.00
		-Includes preparation, installation, and materials.		
		-Price valid for construction projects less than 100 square feet.		

Edge Restoration, Sod Install & Ornamental Grass Total: \$796.79

Project Total: \$39,838.51

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OPTIONAL SERVICES

Sitting Wall- Mortared

Description of scope of work:

- Wall to be sitting height. 16' & 6' wall lengths with bluestone coping. Coping to have 1.5" overhang.
- Use existing bluestone material as coping. Cut stone as needed.
- Material: Clay Brick
- Color: Medium Ironspot #77
- Pattern: Running Bond

Qty	Unit	Items	Price Each	Total
22.00	lf	Mortared Wall Base - Trench Footing Installed	\$83.90	\$1,845.88
5.00	ea	Concrete - Pier Footing 42" Deep Installed	\$283.41	\$1,417.07
70.00	ff	Mortared Walls Installed (Bricks)	\$81.44	\$5,700.82
70.00	sf	Pavers - Clay, Endicott - Medium, Ironspot #77	\$14.19	\$993.38
22.00	lf	Coping Installed (Straight)	\$46.18	\$1,015.89

Sitting Wall- Mortared Total: \$10,973.04

Above prices include all labor, taxes and delivery unless otherwise noted. Any deletions, additions or other charges to your proposal and/or plan may affect pricing and will need to be re-quoted. A minimum restocking fee of 25% will be charged for all items ordered, or for items brought to the job site and not used due to customer initiated changes. If items are custom made or special ordered for the job and not used, customer will be charged at 100%. Above prices are based on complete proposal. For paving work, customers must select paver type, color, pattern and edge detail prior to final pricing and scheduling.

NOTE: This Proposal may be withdrawn by us if not accepted within 15 days.

All material is guaranteed to be as specified, and to be performed in accordance with the drawing submitted for above work and completed in a workmanlike manner. Payments to be made as follows: 50% on acceptance, remainder on completion, 30 days net. Any alteration or deviation from above involving extra costs will be executed upon verbal or written orders, and will become an extra charge over and above the quoted price. The General Conditions, as attached, are expressly incorporated into this agreement.

The above prices and conditions are satisfactory and are hereby accepted. I accept the attached general conditions of this contract. You are authorized to do the work as specified. My acceptance of the proposal constitutes this as a valid and binding agreement.

Respectfully Submitted by:

Representative of Nature's Perspective Landscaping, Inc.

Date: 12/5/2025

Owner/Client Signature:

Date:

Client Initials _____
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GENERAL CONDITIONS

1. **PAYMENTS:** All payments are due and owing upon receipt of Contractor's invoice. If Owner fails to pay any invoice within thirty days after receipt thereof, Owner shall be deemed to have materially breached this agreement and Contractor may exercise any appropriate remedy or remedies, including, but not limited to the suspending of further work, filing of a mechanic's lien claim, assigning past due amounts to a collection agency, and entry on to the Property for the purpose of the removal of any materials or vegetation previously installed on the Property by Contractor. Overdue payments will bear interest at the rate of 1.5% per month until paid. Any checks returned from the bank will result in a \$50.00 service charge. In the event a deposit refund is requested, a 3% processing fee will be deducted for deposits made with a credit card or a \$25.00 processing fee deducted for deposits made by check. Nature's Perspective reserves the right to assess a convenience fee for any credit card transaction.
2. **FUEL SURCHARGE:** Nature's Perspective reserves the right to impose a \$10.00 per month fuel surcharge for Maintenance accounts and no less than \$10.00 up to 0.5% will be added to final invoices for Landscaping and Construction projects if fuel prices reach above \$4.00 per gallon in the Chicagoland area.
3. **COMPLAINTS:** All complaints regarding an invoice shall be made in writing within seven (7) days from the date of the invoice, or the invoice for all purposes shall be deemed to be accurate and the services detailed therein performed satisfactorily.
4. **LABOR AND MATERIALS:** Contractor agrees to furnish the materials for the project and complete the work to be done in a workmanlike manner. For paving work, walkway and patio base to be approximately four inches of crushed compacted gravel with approximately one-inch torpedo sand leveling course. Edges retained with concealed or selected edging. Owner acknowledges that substitutions of materials are occasionally necessary due to availability of materials from suppliers. All substitutions shall be consistent in quality and character with the selections previously specified herein. Plant sizes are based on ANSI Z60.1 – 2004 standards. Contractor shall pay all subcontractors, laborers and material suppliers.
5. **DISCLAIMED WORK:** No seeding, landscaping or other work is included in this Agreement unless expressly specified. Contractor shall not be held responsible for any existing violations of applicable building regulations or ordinances, whether or not citations have been issued by local governmental authorities. Contractor is not responsible for any increase in the cost of the project which is attributable to abnormal or unusual pre-existing conditions, including, but not limited to filled ground or ground of inadequate bearing capacity, rock and other material not removable by ordinary hand tools, plumbing, gas, waste, water or any other utility lines not shown on documents or plans furnished by Owner. Correction of any such violations or abnormal conditions by Contractor shall be considered additional work and subject to the terms of paragraph 5 hereof.
6. **ADDITIONAL WORK:** Contractor will perform or furnish extra, additional or different work or materials upon execution of a written change order signed by both Owner and Contractor or upon verbal agreement of the parties. The foregoing notwithstanding, Contractor is hereby authorized to perform or furnish extra, additional or different work or materials not inconsistent with the intent of the project as Contractor solely determines and Owner hereby agrees to pay Contractor a reasonable additional amount therefor. Contractor may require partial or full payment for any additional work or materials prior to performance or furnishing thereof. Contractor will notify Owner of any extra, additional or different work or materials in connection with the project.
7. **DRAWINGS:** Contractor's designs, plans, specifications and/or written change orders, if any, shall be signed by the Owner and shall become a part of this Agreement. In the event of a conflict between this Agreement and the designs, etc., then this Agreement shall control. Measurements, sizes and shapes in plans and specifications are approximate and subject to field verification and to natural variations in some materials.
8. **PROPERTY RIGHTS AND RESTRICTIONS:** Owner represents that he owns the Property at which the work is to be performed. Owner shall locate and point out the boundary lines of the Property to Contractor. Owner shall be solely responsible for the accuracy of markers or boundary lines indicated to Contractor and as detailed on the drawings. If a land survey or grading plan is required for any reason to confirm markers or boundary lines or to satisfy local building requirements, Owner agrees to provide or pay for such survey or plan. Prior to the start of construction, Owner shall give Contractor a copy of any restrictions, easements or rights of way relating to or affecting the Property.
9. **ACCESS:** Owner or owner's agent agrees to provide free access to work areas for workers, vehicles and vehicle parking.
10. **INJURY AND DAMAGES:** To the extent permitted by law, Contractor shall not be held liable for injury or damage to persons or property, including but not limited to, damage to curbs, driveways, walks, patios, plant containers, lawns, shrubs, or other vegetation unless caused by the gross negligence of Contractor, its agents or employees. Owner acknowledges and accepts the risk of injury, which may result from the use of items such as plant supports and wires, temporary supports and structures, trellis and similar devices on the property of Owner. Owner agrees to hold contractor harmless for damages suffered by owner or any other persons for any such injury or damage.
11. **START, DELAY AND COMPLETION OF WORK:** Subject to timely payment of any sums due, Contractor agrees to commence work and to continue to work in a timely fashion so as to insure the project's consistent development and ultimate completion. For paving work customer must select paver type, color, pattern and edge detail and approve layout prior to commencing excavation. Prior to excavation, Nature's Perspective will contact JULIE or DIGGER and assume responsibility for all MARKED underground cable and utility lines. If we cut a line, we are responsible for its repair. Nature's Perspective cannot be held responsible for delays or cut lines if JULIE or DIGGER are denied access to property by Homeowner. Homeowner is responsible for marking privately installed lines. Nature's Perspective is not responsible for cutting or damaging any UNMARKED buried lines, including but not limited to, cable or satellite TV, modem, water electrical, gas, sprinkler lines/heads, invisible dog fences or any buried object that is not identified, marked, and located. Contractor shall not be held responsible for project delays caused by Owner or Owner's agents, acts of third parties, inclement weather, acts of God, strikes, labor disputes, material shortages, licensing or regulatory agency inspections, civil unrest, terrorism or any other actions or causes beyond Contractor's control. Interruptions in completion initiated by the Owner or Owner's agents causing our workers to prematurely cease working are subject to an interruption charge of no less than \$500.00 per incident.

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(Please initial each page)

12. **INSURANCE:** Contractor will carry and keep in force public liability and Workmen's Compensation insurance, in amounts desired by Contractor. Owner will provide fire, tornado, and all other insurance coverage necessary or desired by Owner, at Owner's expense.
13. **MISCELLANEOUS:**
- (a) Contractor may subcontract any portion of the work, provided such subcontracting shall not affect the rights and privileges of Owner under this Agreement.
 - (b) Illinois law shall govern the terms of this Agreement.
 - (c) Any dispute between the parties shall be arbitrated in accordance with the rules of the American Arbitration Association. If any arbitration is instituted to interpret or enforce this Agreement, the prevailing party shall be entitled to recover all of its costs and expenses, including reasonable attorneys' fees.
 - (d) In case one or more of the provisions of this agreement or any application thereof shall be invalid, illegal or unenforceable, the validity, legality or enforceability of the remaining provisions and any other application thereof shall not in any way be impaired thereby.
 - (e) This is the entire agreement between the parties. All verbal representations, negotiations and understandings heretofore are merged into and superseded by this Agreement. There are no understandings or agreements between the parties which do not appear herein.
 - (f) Except as provided herein this Agreement shall not be changed or modified except in writing, signed by both parties.
14. **PROMOTIONAL:** Contractor may take photographs of property to assist in design and planning of project. Photographs of property, both before and after work is completed may be used and reproduced for promotional purposes by contractor.
15. **LIMITED WARRANTY:** NATURE'S PERSPECTIVE LANDSCAPING, INC. provides the following LIMITED WARRANTY:
- Woody Plants:** We will replace one time, without charge, any tree, shrub, evergreen, groundcover or vine furnished and planted by us that dies within a period of two years from the date of installation.
- Perennials, Ornamental Grasses & Roses:** We will replace one time, without charge, any perennials, ornamental grasses and roses furnished and planted by us that die within a period of thirty days from the date of installation.
- Sodded Lawns:** We will replace one time, without charge, any sod furnished and planted by us that dies within a period of thirty days from the date of installation. If resodding or patching is necessary, this work will be performed as soon as the weather, season and schedule permits.
- Seeded Lawns:** We warranty a reasonable stand of grass over 90% of the seeded area within sixty days from the date of installation. We will re-seed one time, without charge, any lawn planted by us that fails to meet this standard. If reseeding is necessary, this work will be performed as soon as the weather, season and schedule permits.
- The above limited warranty is contingent upon Owner carrying out the following instructions:**
- (a) Watering All Plants: This should be done by thoroughly wetting the rootsoil mass every seven days during the growing season, provided there has not been at least one inch of rain in the interim period. For more detailed watering information please refer to the watering instruction sheet provided, our web site, or call our office.
 - (b) Pest Control: Keep plants free of injurious insects and diseases by timely and proper application of pesticides.
 - (c) Cultivation: Keep plantings free of weeds.
- Hardscaping:** We will repair all brick paving, one time, without charge, any brick paving that has settled on undisturbed soil within a period of five years. Clay and concrete pavers carry manufacturers guarantee against breakage. No guarantee against fading or exact color is made.
- Poured Concrete:** All material is guaranteed to be as specified and concrete work is to be performed in accordance with the drawings and specifications submitted, if any. Concrete carries no guarantee against cracking, spalling, popping or similar related concrete characteristics. Do not use salt or salt like products for at least three years after installation on concrete.
- Cladding:** We will repair or replace, one time, without charge, any cladding that fails for a period of one year from the date of installation.
- Low Voltage Lighting:** We will repair all failed lighting due to faulty installation for a period of one year after the date of installation. Transformers and fixtures carry manufacturer's warranty against defects in material and workmanship. Bulbs carry no warranty.
- Drainage:** All drainage work performed by Nature's Perspective Landscaping is considered passive drainage and is designed to move water away from structures and/or alleviate flooding. Our drainage work is not to be considered waterproofing and we offer no written, implied or expressed warranty against water entering your home or other structures. In cases of extreme hard or fast rains, your system may be overwhelmed and some standing water may occur. Please allow 24 hours for the standing water to dissipate.
- This limited warranty shall be invalidated if:**
- Owner does not pay any invoice within thirty days after receipt thereof. All claims for loss must be reported to Contractor within the applicable warranty period and no replacements or repairs of any kind will be made until original invoice is paid in full. We will not replace plants or repair any work if damage or death is caused by lack of water or improper watering, animals, insects, mechanical damage, neglect, acts of God, inclement weather, acts of third parties, civil unrest, terrorism, or any other actions or causes beyond Contractor control. This limited warranty does not cover any materials that are transplanted, or owner supplied.
16. **NON-WARRANTIED ITEMS:** We provide no warranty for any plant material planted above ground in containers, transplanted plant material, owner supplied materials, flowering bulbs, or annual plants.

NO OTHER WARRANTIES, EXPRESSED OR IMPLIED, ARE PROVIDED.

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TREE INSTALLATION

Landscape Installation

- Install new trees and per plan. Confirm placement with client prior to installation.
- Amend soil with compost and install ring of shredded hardwood bark. Mulch tree rings to be 3' O.C.
- PLANT WARRANTY: Woody Plants:** We will replace one time, without charge, any tree, shrub, evergreen, groundcover, or vine supplied and planted by us that dies within a period of two years from the date of installation.
- Tree staking is not necessary for specimens.
- Pruning of Dogwoods, Maple, and Oak is not required. Pruning can be done based on desired shape as plant material matures by client.
- See watering instructions document for establishment information and protocol.

Qty	Unit	Items	Price Each	Total
2.00	hr	Labor - Landscaping (Mh)	\$155.00	\$310.00
0.50	cy	Debris Disposal - Landscape	\$90.00	\$45.00
		-Estimated amount, will bill for additional.		
1.00	cy	Debris Disposal - Soil	\$110.00	\$110.00
		-Estimated amount, will bill for additional.		
2.00	5'	Dogwood, Kousa, Clump	\$842.97	\$1,685.95
1.00	3"	Maple, Red, Autumn Blaze	\$1,887.14	\$1,887.14
1.00	2.5"	Oak, Regal Prince, Low Branched	\$1,590.13	\$1,590.13
0.50	cy	Compost, Blended	\$250.00	\$125.00
		-Estimated amount, will bill for additional.		
		-If weeding or debris removal is needed before application additional charges will apply.		
0.50	cy	Shredded Hardwood Bark	\$250.00	\$125.00
		-Estimated amount, will bill for additional.		

Landscape Installation Total: \$5,878.22

Project Total: \$5,878.22

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The above prices and conditions are satisfactory and are hereby accepted. I accept the attached general conditions of this contract. You are authorized to do the work as specified. My acceptance of the proposal constitutes this as a valid and binding agreement.

Respectfully Submitted by:

Representative of Nature's Perspective Landscaping, Inc.

Date: 10/3/2025

Owner/Client Signature:

Date: 10/4/2025

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GENERAL CONDITIONS

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5. **DISCLAIMED WORK:** No seeding, landscaping or other work is included in this Agreement unless expressly specified. Contractor shall not be held responsible for any existing violations of applicable building regulations or ordinances, whether or not citations have been issued by local governmental authorities. Contractor is not responsible for any increase in the cost of the project which is attributable to abnormal or unusual pre-existing conditions, including, but not limited to filled ground or ground of inadequate bearing capacity, rock and other material not removable by ordinary hand tools, plumbing, gas, waste, water or any other utility lines not shown on documents or plans furnished by Owner. Correction of any such violations or abnormal conditions by Contractor shall be considered additional work and subject to the terms of paragraph 5 hereof.
6. **ADDITIONAL WORK:** Contractor will perform or furnish extra, additional or different work or materials upon execution of a written change order signed by both Owner and Contractor or upon verbal agreement of the parties. The foregoing notwithstanding, Contractor is hereby authorized to perform or furnish extra, additional or different work or materials not inconsistent with the intent of the project as Contractor solely determines and Owner hereby agrees to pay Contractor a reasonable additional amount therefor. Contractor may require partial or full payment for any additional work or materials prior to performance or furnishing thereof. Contractor will notify Owner of any extra, additional or different work or materials in connection with the project.
7. **DRAWINGS:** Contractor's designs, plans, specifications and/or written change orders, if any, shall be signed by the Owner and shall become a part of this Agreement. In the event of a conflict between this Agreement and the designs, etc., then this Agreement shall control. Measurements, sizes and shapes in plans and specifications are approximate and subject to field verification and to natural variations in some materials.
8. **PROPERTY RIGHTS AND RESTRICTIONS:** Owner represents that he owns the Property at which the work is to be performed. Owner shall locate and point out the boundary lines of the Property to Contractor. Owner shall be solely responsible for the accuracy of markers or boundary lines indicated to Contractor and as detailed on the drawings. If a land survey or grading plan is required for any reason to confirm markers or boundary lines or to satisfy local building requirements, Owner agrees to provide or pay for such survey or plan. Prior to the start of construction, Owner shall give Contractor a copy of any restrictions, easements or rights of way relating to or affecting the Property.
9. **ACCESS:** Owner or owner's agent agrees to provide free access to work areas for workers, vehicles and vehicle parking.
10. **INJURY AND DAMAGES:** To the extent permitted by law, Contractor shall not be held liable for injury or damage to persons or property, including but not limited to, damage to curbs, driveways, walks, patios, plant containers, lawns, shrubs, or other vegetation unless caused by the gross negligence of Contractor, its agents or employees. Owner acknowledges and accepts the risk of injury, which may result from the use of items such as plant supports and wires, temporary supports and structures, trellis and similar devices on the property of Owner. Owner agrees to hold contractor harmless for damages suffered by owner or any other persons for any such injury or damage.
11. **START, DELAY AND COMPLETION OF WORK:** Subject to timely payment of any sums due, Contractor agrees to commence work and to continue to work in a timely fashion so as to insure the project's consistent development and ultimate completion. For paving work customer must select paver type, color, pattern and edge detail and approve layout prior to commencing excavation. Prior to excavation, Nature's Perspective will contact JULIE or DIGGER and assume responsibility for all MARKED underground cable and utility lines. If we cut a line, we are responsible for its repair. Nature's Perspective cannot be held responsible for delays or cut lines if JULIE or DIGGER are denied access to property by Homeowner. Homeowner is responsible for marking privately installed lines. Nature's Perspective is not responsible for cutting or damaging any UNMARKED buried lines, including but not limited to, cable or satellite TV, modem, water electrical, gas, sprinkler lines/heads, invisible dog fences or any buried object that is not identified, marked, and located. Contractor shall not be held responsible for project delays caused by Owner or Owner's agents, acts of third parties, inclement weather, acts of God, strikes, labor disputes, material shortages, licensing or regulatory agency inspections, civil unrest, terrorism or any other actions or causes beyond Contractor's control. Interruptions in completion initiated by the Owner or Owner's agents causing our workers to prematurely cease working are subject to an interruption charge of no less than \$500.00 per incident.

Client Initials _____
(Please initial each page)

12. **INSURANCE:** Contractor will carry and keep in force public liability and Workmen's Compensation insurance, in amounts desired by Contractor. Owner will provide fire, tornado, and all other insurance coverage necessary or desired by Owner, at Owner's expense.
13. **MISCELLANEOUS:**
- (a) Contractor may subcontract any portion of the work, provided such subcontracting shall not affect the rights and privileges of Owner under this Agreement.
 - (b) Illinois law shall govern the terms of this Agreement.
 - (c) Any dispute between the parties shall be arbitrated in accordance with the rules of the American Arbitration Association. If any arbitration is instituted to interpret or enforce this Agreement, the prevailing party shall be entitled to recover all of its costs and expenses, including reasonable attorneys' fees.
 - (d) In case one or more of the provisions of this agreement or any application thereof shall be invalid, illegal or unenforceable, the validity, legality or enforceability of the remaining provisions and any other application thereof shall not in any way be impaired thereby.
 - (e) This is the entire agreement between the parties. All verbal representations, negotiations and understandings heretofore are merged into and superseded by this Agreement. There are no understandings or agreements between the parties which do not appear herein.
 - (f) Except as provided herein this Agreement shall not be changed or modified except in writing, signed by both parties.
14. **PROMOTIONAL:** Contractor may take photographs of property to assist in design and planning of project. Photographs of property, both before and after work is completed may be used and reproduced for promotional purposes by contractor.
15. **LIMITED WARRANTY: NATURE'S PERSPECTIVE LANDSCAPING, INC.** provides the following LIMITED WARRANTY:
- Woody Plants:** We will replace one time, without charge, any tree, shrub, evergreen, groundcover or vine furnished and planted by us that dies within a period of two years from the date of installation.
- Perennials, Ornamental Grasses & Roses:** We will replace one time, without charge, any perennials, ornamental grasses and roses furnished and planted by us that die within a period of thirty days from the date of installation.
- Sodded Lawns:** We will replace one time, without charge, any sod furnished and planted by us that dies within a period of thirty days from the date of installation. If resodding or patching is necessary, this work will be performed as soon as the weather, season and schedule permits.
- Seeded Lawns:** We warranty a reasonable stand of grass over 90% of the seeded area within sixty days from the date of installation. We will re-seed one time, without charge, any lawn planted by us that fails to meet this standard. If reseeding is necessary, this work will be performed as soon as the weather, season and schedule permits.
- The above limited warranty is contingent upon Owner carrying out the following instructions:**
- (a) Watering All Plants: This should be done by thoroughly wetting the rootsoil mass every seven days during the growing season, provided there has not been at least one inch of rain in the interim period. For more detailed watering information please refer to the watering instruction sheet provided, our web site, or call our office.
 - (b) Pest Control: Keep plants free of injurious insects and diseases by timely and proper application of pesticides.
 - (c) Cultivation: Keep plantings free of weeds.
- Hardscaping:** We will repair all brick paving, one time, without charge, any brick paving that has settled on undisturbed soil within a period of five years. Clay and concrete pavers carry manufacturers guarantee against breakage. No guarantee against fading or exact color is made.
- Poured Concrete:** All material is guaranteed to be as specified and concrete work is to be performed in accordance with the drawings and specifications submitted, if any. Concrete carries no guarantee against cracking, spalling, popping or similar related concrete characteristics. Do not use salt or salt like products for at least three years after installation on concrete.
- Cladding:** We will repair or replace, one time, without charge, any cladding that fails for a period of one year from the date of installation.
- Low Voltage Lighting:** We will repair all failed lighting due to faulty installation for a period of one year after the date of installation. Transformers and fixtures carry manufacturer's warranty against defects in material and workmanship. Bulbs carry no warranty.
- Drainage:** All drainage work performed by Nature's Perspective Landscaping is considered passive drainage and is designed to move water away from structures and/or alleviate flooding. Our drainage work is not to be considered waterproofing and we offer no written, implied or expressed warranty against water entering your home or other structures. In cases of extreme hard or fast rains, your system may be overwhelmed and some standing water may occur. Please allow 24 hours for the standing water to dissipate.
- This limited warranty shall be invalidated if:**
- Owner does not pay any invoice within thirty days after receipt thereof. All claims for loss must be reported to Contractor within the applicable warranty period and no replacements or repairs of any kind will be made until original invoice is paid in full. We will not replace plants or repair any work if damage or death is caused by lack of water or improper watering, animals, insects, mechanical damage, neglect, acts of God, inclement weather, acts of third parties, civil unrest, terrorism, or any other actions or causes beyond Contractor control. This limited warranty does not cover any materials that are transplanted, or owner supplied.
16. **NON-WARRANTIED ITEMS:** We provide no warranty for any plant material planted above ground in containers, transplanted plant material, owner supplied materials, flowering bulbs, or annual plants.

NO OTHER WARRANTIES, EXPRESSED OR IMPLIED, ARE PROVIDED.

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